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** This Act reflects only the amendments made until June 30, 2013*

WORKERS VOCATIONAL SKILLS DEVELOPMENT ACT

Act No. 5474, Dec. 24, 1997

Amended by Act No. 6455, Mar. 28, 2001
Wholly Amended by Act No. 7298, Dec. 31, 2004
Amended by Act No. 7428, Mar. 31, 2005
Act No. 8073, Dec. 21, 2006
Act No. 8294, Jan. 26, 2007
Act No. 8372, Apr. 11, 2007
Act No. 8429, May 11, 2007
Act No. 8814, Dec. 27, 2007
Act No. 8815, Dec. 27, 2007
Act No. 9316, Dec. 31, 2008
Act No. 9792, Oct. 9, 2009
Act No. 10337, May 31, 2010
Act No. 10338, May 31, 2010
Act No. 10339, Jun. 4, 2010
Act No. 10866, Jul. 21, 2011
Act No. 11042, Sept. 15, 2011
Act No. 11272, Feb. 1, 2012
Act No. 11461, Jun. 1, 2012
Act No. 11690, Mar. 23, 2013

CHAPTER I

General Provisions

<Amended by Act No. 9316, Dec. 31, 2008>

Article 1 (Purpose)

The purpose of this Act is to promote and stabilize the employment of workers, raise their social and economic status, improve the productivity of enterprises, and thus contribute to social and economic development by promoting and supporting workers' skills development throughout their lives, training skilled and technical workforces required by industries, and conducting projects for industry-academia collaboration, etc.
<Amended by Act No. 10337, May. 31, 2010>

Article 2 (Definition)

The terms used in this Act shall be defined as follows:
<Amended by Act No. 10337, May. 31, 2010; Act No. 10339, Jun. 4, 2010; and Act No. 11272, Feb. 1, 2012>

1. "Vocational skills development training" refers to training conducted to help workers acquire and improve their abilities

- to perform their work, which are necessary for their jobs;
- 2. "Vocational skills development activities" refers to such activities as providing vocational skills development training, developing vocational skills development training media and courses and conducting surveys or research on vocational skills development;
- 3. "Vocational skills development training facilities" refers to facilities described in the following items:
 - A. Public vocational training facilities: facilities established by the State, local governments and public organizations prescribed by the Presidential Decree (hereinafter referred to as "public organizations") to conduct vocational skills development training in consultation with the Minister of Employment and Labor or with the approval of the Minister of Employment and Labor pursuant to Article 27; and
 - B. Designated vocational training facilities: facilities, such as vocational training institutes and vocational training schools, etc., founded and established to conduct vocational skills development training and designated by the Minister of Employment and Labor pursuant to Article 28.
- 4. "Worker" refers to a person who is employed by an employer and a person who intends to be employed; and
- 5. "Polytechnic college" refers to an education or training institute which is a junior college under subparagraph 4 of Article 2 of the Higher Education Act and runs multi-skilled technician courses or degree-conferring advanced major courses under Article 40, which are degree courses, along with vocational training courses.

<This Article Wholly Amended by Act No. 9316, Dec. 31, 2008>

Article 3 (Basic Principles of Vocational Skills Development Training)

(1) Vocational skills development training shall be systematically conducted in a manner that conforms to the hopes, aptitude, and abilities of an individual worker, throughout his/her life.

(2) Vocational skills development training shall be conducted in a way to respect the autonomy and creativity of the private sector and based on labor-management participation and cooperation.

(3) Vocational skills development training shall be conducted in a way not to discriminate against workers on the grounds of gender, age, physical conditions, employment status, religion, social status, etc., but to guarantee equal opportunities for all workers.

(4) Emphasis shall be placed on vocational skills

development training for people specified in any of the following subparagraphs: *<Amended by Act No. 11042, Sept. 15, 2011>*

1. The aged and the disabled;
2. Eligible recipients under the National Basic Livelihood Security Act;
3. Persons who gave distinguished services to the State, and their bereaved families and dependents under the Act on the Honorable Treatment and Support for Persons, etc. of Distinguished Services to the State and persons entitled to veterans benefits and their bereaved families and dependents under the Act on Support for Persons Entitled to Veterans Benefits;
4. Persons who gave distinguished services to 5·18 democratization and their bereaved families and dependents under the Act on the Honorable Treatment and Support for Persons of Distinguished Services to 5·18 Democratization;
5. Discharged soldiers and persons due to be discharged from military service under the Act on Support for Discharged Soldiers;
6. Female workers;
7. Workers in small-and medium-sized enterprises (hereinafter referred to as "small and medium enterprises") under the Framework Act on Small and Medium Enterprises;
8. Workers engaged in a production line in the manufacturing industry;
9. Daily workers, part-time workers, workers who have signed a fixed-term contract and workers employed for a temporary project; and
10. Dispatched workers under the Act on the Protection, etc. of Dispatched Workers.

(5) Vocational skills development training shall be conducted in a way that it can be closely linked to school education prescribed by education-related laws and industrial sites.

<This Article Wholly Amended by Act No. 9316, Dec. 31, 2008>

Article 4 (Duties of State, Employers, etc.)

(1) The State and local governments shall come up with necessary policies to promote and support vocational skills development activities conducted by employers, employers' and workers' organizations, etc., and vocational skills development training voluntarily taken by workers, etc. in order to develop workers' vocational skills throughout their lives. In this case, the State may provide support necessary for implementing the policies established by local governments. *<Amended by Act No. 10337, May. 31,*

2010>

(2) An employer shall conduct vocational skills development training for his/her workers, encourage many workers to participate in vocational skills development training and endeavor to create an environment for vocational skills development training by granting workers leave for the development of vocational skills or appointing a person in charge of human resources development (referring to persons in charge of planning, operating, and evaluating, etc. vocational skills development activities in vocational skills development training facilities, enterprises, etc.; hereinafter the same shall apply.).

(3) A worker shall endeavor to develop vocational skills according to his/her aptitude and abilities and cooperate in vocational skills development activities conducted by the State, local governments, employers, etc.

(4) Employers' and workers' organizations, industry-specific human resources development councils under Article 12 (2) of the Industrial Development Act (hereinafter referred to as "industry-specific HRD councils), etc., shall make necessary efforts, such as conducting surveys on demand for vocational skills development training in each industry, etc., to ensure that vocational skills development training is conducted to meet demand at industrial sites. *<Newly Inserted by Act No. 10337, May 31, 2010>*

(5) A person who conducts vocational skills development training shall endeavor to have workers receive vocational skills development training suitable for their aptitudes and abilities, by providing counseling concerning vocational skills development training, offering employment guidance, establishing selection criteria, etc. *<Amended by Act No. 10337, May 31, 2010>*

<This Article Wholly Amended by Act No. 9316, Dec. 31, 2008>

Article 5 (Establishment of Basic Plan on Vocational Skills Development)

(1) The Minister of Employment and Labor shall establish and implement a basic plan on vocational skills development for workers (hereinafter referred to as "basic plan on vocational skills development") every five years in consultation with the heads of relevant central administrative agencies and after deliberation by the Employment Policy Council under Article 10 (1) of the Framework Act on Employment Policy. *<Amended by Act No. 10337, May 31, 2010 and Act No. 10339, Jun. 4, 2010>*

(2) The basic plan on vocational skills development shall include the following matters: *<Amended by Act No. 10337, May 31, 2010>*

1. Basic direction of vocational skills development policy;

2. Matters concerning demand and supply of vocational skills development training reflecting the workforce demand and supply trends and prospects under Article 16 of the Framework Act on Employment Policy;
3. Matters concerning support for vocational skills development training voluntarily taken by workers;
4. Matters concerning support for vocational skills development activities conducted by employers for their workers;
5. Matters concerning support for vocational skills development activities conducted by workers' and employers' organizations, industry-specific human resources development councils, etc.;
6. Matters concerning the training of workforces necessary for the sustainable development of the national economy in consideration of trends in industrial development and workforce demand and supply in the labor market;
7. Matters concerning the creation of an environment for vocational skills development training, such as setting standards for vocational skills development training under Article 8, fostering and supporting vocational skills development instructors and persons in charge of human resources development and developing and disseminating the media and methods of vocational skills development training, etc.;
8. Matters concerning the connection of vocational skills development training and qualifications;
9. Matters concerning the evaluation of vocational skills development activities;
10. Other matters as deemed necessary for conducting vocational skills development activities in order to promote and stabilize the employment of workers.

(3) If the Minister of Employment and Labor establishes a basic plan on vocational skills development, he/she shall collect opinions from relevant institutions and organizations, etc., such as employers' and workers' organizations, etc., and may ask the heads of relevant administrative agencies, local governments and public organizations (hereinafter referred to as "heads of relevant administrative agencies, etc.") to submit materials, if deemed necessary. *<Amended by Act No. 10337, May 31, 2010 and Act No. 10339, Jun. 4, 2010>*

*<This Article Wholly Amended by Act No. 9316, Dec. 31, 2008>
<Enforcement Date Jan. 1, 2012>*

Article 6 (Establishment of Vocational Skills Development Information Network)

(1) The Minister of Employment and Labor shall build a vocational skills development information network to collect, manage and provide information on vocational skills development, manage workers' history of developing vocational skills, and efficiently connect vocational skills development with qualifications. *<Amended by Act No. 10337, May 31, 2010 and Act No. 10339, Jun. 4, 2010>*

(2) The Minister of Employment and Labor may request persons who conduct vocational skills development activities or the heads of relevant administrative agencies, etc. to submit materials necessary for the establishment and operation of the vocational skills development information network. The persons who conduct vocational skills development activities or the heads of relevant administrative agencies, etc. shall actively cooperate with that request if there is no special reason. *<Amended by Act No. 10337, May 31, 2010 and Act No. 10339, Jun. 4, 2010>*

(3) The Minister of Employment and Labor shall take necessary measures to enable the heads of relevant administrative agencies, etc., to deal with business using the vocational skills development information network. *<Newly Inserted by Act No. 10337, May 31, 2010 and Amended by Act No. 11272, Feb. 1, 2012>*

<This Article Wholly Amended by Act No. 9316, Dec. 31, 2008>

<Title of This Article Amended by Act No. 10337, May 31, 2010>

Article 7 (Survey and Research on Vocational Skills Development)

The Minister of Employment and Labor may conduct a survey, research and development needed to establish policies and improve systems for workers' vocational skills development. *<Amended by Act No. 10339, Jun. 4, 2010>*

Article 8 (Standards for Vocational Skills Development Training)

(1) The Minister of Employment and Labor may set standards (hereinafter referred to as "standards for vocational skills development training") for techniques, resources, operation, etc., related to vocational skills development training to enable the mutual compatibility, recognition and exchange of vocational skills development training. *<Amended by Act No. 10339, Jun. 4, 2010>*

(2) The Minister of Employment and Labor shall, if he/she intends to set standards for vocational skills development training, collect opinions from relevant institutions, organizations, etc., such

as employers' and workers' organizations, etc. *<Amended by Act No. 10339, Jun. 4, 2010>*

(3) Necessary matters concerning procedures, etc. for setting standards for vocational skills development training pursuant to paragraph (1) shall be prescribed by the Presidential Decree.

<This Article Wholly Amended by Act No. 9316, Dec. 31, 2008>

Article 9 (Training Contracts and Rights and Obligations)

(1) An employer and a worker who intends to receive vocational skills development training may conclude a training contract over rights, obligations, etc. arising from vocational skills development training.

(2) When concluding a contract under paragraph (1), an employer may have a person who receives the relevant vocational skills development training engage in the work designated by the employer for a certain period after completing the vocational skills development training. In this case, the period shall be five years or less and not exceed three times the period of the vocational skills development training.

(3) Where a training contract under paragraph (1) is not concluded, the vocational skills development training received by an employed worker shall be considered as labor offered by the worker.

(4) An employer who fails to conclude a training contract under paragraph (1) shall conduct vocational skills development training during working hours (hereinafter referred to as "standard working hours") under Article 50 of the Labor Standards Act, but if the worker concerned agrees, he/she may conduct vocational skills development training outside the standard working hours.

(5) Wages for overtime work and night work may not be paid for training hours outside the standard working hours, except where vocational skills development training is conducted using production facilities or within the place of work.

<This Article Wholly Amended by Act No. 9316, Dec. 31, 2008>

Article 10 (Training Allowances)

A person who conducts vocational skills development training may pay training allowances to trainees who receive the vocational skills development training.

<This Article Wholly Amended by Act No. 9316, Dec. 31, 2008>

Article 11 (Accident Consolation Benefits)

(1) A vocational skills development training provider shall pay accident consolation benefits, if a worker who receives vocational skills development training (excluding those subject to the Industrial

Accident Compensation Insurance Act) in the training facility concerned has an accident caused by the vocational skills development training during the training. In the case of a worker who receives entrusted vocational skills development training, the entrusting person shall pay accident consolation benefits, but if the accident occurs due to flaws in the training facilities of the entrusted person or other causes attributable to the entrusted person, the entrusted person shall pay accident consolation benefits.

(2) Necessary matters concerning standards and procedures for the payment of accident consolation benefits under paragraph (1) shall be prescribed by the Presidential Decree.

<This Article Wholly Amended by Act No. 9316, Dec. 31, 2008>

Article 11-2 (Vocational Skills Development Activities by Public Organizations)

A public organization may conduct the following activities to develop workers' vocational skills:

1. Vocational skills development training for persons falling under any of the subparagraphs of Article 12 (1);
2. Vocational skills development training aimed at facilitating supply and demand of workforces in occupations in national key and strategic industries under Article 15;
3. Surveys, education or publicity activities concerning vocational skills development activities;
4. Development and dissemination of vocational skills development training courses, media, methods, etc.;
5. Training of vocational skills development training instructors and those in charge of human resources development and development of their competency; and
7. Other activities prescribed by the Presidential Decree.

<This Article Wholly Amended by Act No. 10337, May 31, 2010>

Article 11-3 (Required Financial Resources)

Financial resources necessary for vocational skills development activities and supports or loans for them under this Act shall be financed from the general account, the Employment Insurance Fund under the Employment Insurance Act, etc. *<This Article Wholly Amended by Act No. 9316, Dec. 31, 2008>*

Article 11-4 (Promotion of International Cooperation)

With regard to workers' vocational skills development, the Minister of Employment and Labor may carry out exchange and cooperation projects with international organizations, foreign

governments or foreign agencies, such as by providing skill and technical training to foreigners and holding and attending international conferences on workers' vocational skills development, etc. *<Amended by Act No. 10339, Jun. 4, 2010>*
<This Article Wholly Amended by Act No. 9316, Dec. 31, 2008>

CHAPTER II

Support, etc., for Workers' Voluntary Vocational Skills Development

<Amended by Act No. 10337, May 31, 2010>

Article 12 (Support, etc., for Vocational Skills Development Training for Unemployed Persons, etc.)

(1) The State and local governments may conduct vocational skills development training or provide those receiving vocational skills development training with support for the expenses in order to promote and stabilize the employment of persons falling under any of the following subparagraphs (hereinafter referred to as "unemployed persons, etc."): *<Amended by Act No. 10337, May 31, 2010>*

1. The unemployed;
2. Persons who are eligible recipients under the National Basic Livelihood Security Act, female household heads or youths and meet the conditions prescribed by the Presidential Decree;
3. Deleted. *<Act No. 10337, May 31, 2010>*
4. Deleted. *<Act No. 10337, May 31, 2010>*
5. Deleted. *<Act No. 10337, May 31, 2010>*
6. Other persons prescribed by the Presidential Decree.

(2) Persons eligible to receive vocational skills development training conducted pursuant to paragraph (1), requirements for training courses, training allowances, and other matters necessary for vocational skills development training shall be prescribed by the Presidential Decree.

<This Article Wholly Amended by Act No. 9316, Dec. 31, 2008>

<Title of This Article Amended by Act No. 10337, May 31, 2010>

Article 13 Deleted. *<Act No. 10337, May 31, 2010>*

Article 14 Deleted. *<Act No. 10337, May 31, 2010>*

Article 15 (Provision of Vocational Skills Development Training in

Occupations in National Key and Strategic Industries)

(1) The State and local governments may conduct vocational skills development training necessary for facilitating demand and supply of workforces in the following occupations (hereinafter referred to as “occupations in national key and strategic industries”): *<Amended by Act No. 10337, May 31, 2010 and Act No. 10339, Jun. 4, 2010>*

1. Occupations suffering from labor shortages in industries essential to the national economy;
2. Occupations suffering from labor shortages in national strategic industries, such as the information and communications industry and the automobile industry, etc.; and
3. Other occupations announced by the Minister of Employment and Labor where it is necessary to train workforces as industries’ demand for workforces increases.

(2) Criteria and procedures for the selection of occupations in national key and strategic industries, persons eligible to receive training, requirements for training courses, training allowances and other matters necessary for vocational skills development training shall be prescribed by the Presidential Decree. *<Amended by Act No. 10337, May 31, 2010>*

<This Article Wholly Amended by Act No. 9316, Dec. 31, 2008>

<Title of This Article Amended by Act No. 10337, May 31, 2010>

Article 16 (Entrustment, etc. of Vocational Skills Development Training)

(1) The State or a local government which intends to conduct vocational skills development training pursuant to Articles 12 and 15 may make a contract with any person prescribed by the Presidential Decree to entrust the person to conduct vocational skills development training. *<Amended by Act No. 10337, May 31, 2010>*

(2) A person who has entrusted vocational skills development training pursuant to paragraph (1) may demand a correction or terminate the entrustment contract if the person entrusted with the training falls under any of the following subparagraphs: Provided that where such person falls under subparagraph 1 or 2, the entrustment contract shall be terminated: *<Amended by Act No. 10337, May 31, 2010>*

1. Where the person gets entrusted in a false or other fraudulent ways;
2. Where the person receives or intends to receive training fees in a false or other fraudulent ways;
3. Where the person conducts vocational skills development

- training in violation of the entrustment contract;
- 4. Where the person fails to comply with a demand for correction; and
- 5. Where the person fails to comply with an order to report and submit materials under Article 58 or complies with such order falsely.

(3) With respect to any person whose entrustment contract is terminated pursuant to paragraph (2) (excluding cases where training expenses are less than the amount prescribed by the Presidential Decree among persons whose entrustment contracts are terminated under subparagraph 2 of paragraph (2)), the State and a local government may not entrust vocational skills development training under paragraph (1) nor recognize vocational skills development training courses under Articles 19 and 24 for up to five years from the date of termination.
<Amended by Act No. 10337, May 31, 2010>

(4) Deleted. *<Act No. 10337, May 31, 2010>*

(5) Deleted. *<Act No. 10337, May 31, 2010>*

(6) Deleted. *<Act No. 10337, May 31, 2010>*

(7) Details of entrustment contracts, entrustment criteria, demands for correction, termination of entrustment contracts, and other matters necessary for entrustment under paragraphs (1) through (3) shall be prescribed by the Presidential Decree.

<Amended by Act No. 10337, May 31, 2010>

<This Article Wholly Amended by Act No. 9316, Dec. 31, 2008>

Article 17 (Support for Workers' Voluntary Vocational Skills Development)

(1) The Minister of Employment and Labor may provide workers with support or loans for the following expenses in order to support the voluntary vocational skills development of workers (excluding unemployed persons, etc.; hereinafter the same shall apply in this Article): *<Amended by Act No. 10337, May 31, 2010 and Act No. 10339, Jun. 4, 2010>*

- 1. Expenses of taking vocational skills development training courses recognized by the Minister of Employment and Labor pursuant to Article 19;
- 2. Tuition fees and other payments for training courses which are considered equivalent to junior colleges or higher under the Higher Education Act;
- 3. Other expenses equivalent to expenses under subparagraphs 1 and 2 and prescribed by the Presidential Decree; and
- 4. Deleted. *<Act No. 10337, May 31, 2010>*

(2) If the Minister of Employment and Labor provides

support or loans pursuant to paragraph (1), he/she may give preferential treatment to workers falling under any of the following subparagraphs: *<Amended by Act No 10339, Jun. 4, 2010>*

1. Workers employed in enterprises meeting the criteria prescribed by the Presidential Decree; and
2. Workers prescribed by the Presidential Decree from among those prescribed in subparagraph 9 or 10 of Article 3 (4).
- (3) Necessary matters concerning the requirements, contents, procedures and levels of support or loans and preferential support under paragraphs (1) and (2) shall be prescribed by the Presidential Decree.

<This Article Wholly Amended by Act No. 9316, Dec. 31, 2008>

Article 18 (Issuance and Operation of Vocational Skills Development Accounts)

(1) The Minister of Employment and Labor may operate a system of issuing accounts which support vocational skills development training expenses (hereinafter referred to as "vocational skills development accounts") and comprehensively administering their history of vocational skills development in order to support the voluntary vocational skills development of people falling under any of the following subparagraphs: *<Amended by Act No 11272, Feb 1, 2012>*

1. Unemployed persons, etc.;
2. Employed persons determined by the Minister of Employment and Labor, who are preparing to transfer to another job or start up their own business.

(2) The Minister of Employment and Labor shall provide information on vocational skills development training courses for which training expenses are paid from vocational skills development accounts (hereinafter referred to as "training courses supported by accounts") so that people falling under any subparagraph of paragraph (1) can receive necessary vocational skills development training using vocational skills development accounts. *<Amended by Act No 11272, Feb 1, 2012>*

(3) Necessary matters concerning the issuance of vocational skills development accounts and the provision of information on training courses supported by accounts under paragraphs (1) and (2) and other necessary matters concerning the operation of the vocational skills development account system shall be prescribed by the Presidential Decree.

<This Article Wholly Amended by Act No. 10337, May 31, 2010>

Article 19 (Recognition of Vocational Skills Development Training

**Courses and Training Courses Supported by Accounts,
Cancellation of Recognition, etc.)**

(1) A person who intends to conduct vocational skills development training for which workers are eligible to receive support or loans for expenses under Article 17 (1) 1 and a person who intends to run training courses supported by accounts shall obtain recognition of the relevant vocational skills development training courses (including training courses supported by accounts; hereinafter the same shall apply in this Article) from the Minister of Employment and Labor. *<Amended by Act No 11272, Feb 1, 2012>*

(2) If a person who has obtained recognition of vocational skills development training courses under paragraph (1) falls under any of the following subparagraphs, the Minister of Employment and Labor may order a correction or cancel the recognition of the training courses: Provided that where the person falls under any of subparagraphs 1 through 4, the recognition shall be cancelled: *<Amended by Act No 11272, Feb 1, 2012>*

1. Where the person has obtained recognition under paragraph (1) in a false or other fraudulent ways;
2. Where the person has received or intends to receive support or loans for training costs in a false or other fraudulent ways;
3. Where the person has received or intends to receive fees from workers taking the vocational skills development training, in a false or other fraudulent ways;
4. Where the person makes workers taking the vocational skills development training receive support or loans for their training expenses in a false or other fraudulent ways;
5. Where the person conducts vocational skills development training in violation of the details recognized under paragraph (1);
6. Where the person fails to comply with the corrective order; and
7. Where the person fails to comply with an order to report and submit materials under Article 58 or complies with such order falsely.

(3) A person for whom the recognition is cancelled pursuant to paragraph (2) (excluding cases where training costs are less than the amount prescribed by the Presidential Decree among persons for whom the recognition is cancelled as they fall under subparagraphs 2 through 4 of paragraph (2)) may not be entrusted with vocational skills development training under

Article 16 (1) and given recognition under paragraph (1) and Article 24 for up to five years from the date of cancellation.

(4) The scope, requirements, contents and valid period of the recognition of vocational skills development training courses under paragraphs (1) and other necessary matters shall be prescribed by the Presidential Decree.

(5) Detailed criteria for the issuance of corrective orders and cancellation of recognition under paragraphs (2) and (3), specific periods of restricting recognition by type of reason for cancellation, and other necessary matters shall be prescribed by the Ordinance of the Ministry of Employment and Labor.
<Amended by Act No. 11272, Feb. 1, 2012>

<This Article Newly Inserted by Act No. 10337, May 31, 2010>

CHAPTER III

Support, etc., for Vocational Skills Development Activities by Employers, etc.

<Amended by Act No. 10337, May 31, 2010>

Article 20 (Support for Vocational Skills Development Activities by Employers and Employers' Organizations)

(1) If an employer, an employers' organization, an workers' organization or their association (hereinafter referred to as "employers' organizations, etc.") conducts vocational skills development activities falling under any of the following subparagraphs, the Minister of Employment and Labor may provide support or loans for the necessary costs: *<Amended by Act No. 10337, May 31, 2010 and Act No. 10339, Jun. 4, 2010>*

1. Vocational skills development training for workers (including entrusted training);
2. Activities of administering qualification tests for workers;
3. Vocational skills development activities conducted jointly with small and medium enterprises or enterprises under Article 19 (2) of the Employment Insurance Act (hereinafter referred to as an "enterprises eligible for preferential support") for workers, etc., in the small and medium enterprises or enterprises eligible for preferential support;
4. Activities of installing and repairing facilities (including dormitories), equipment and instruments and materials necessary for vocational skills development training;
5. Such activities as surveys and research on vocational skills development, and development and dissemination of

vocational skills development training courses and media;

6. Deleted. *<Presidential Decree No. 10337, May 31, 2010>*

7. Other activities prescribed by the Presidential Decree.

(2) If the Minister of Employment and Labor provides support or loans pursuant to paragraph (1), he/she may give preferential treatments to employers or employers' organizations that conduct vocational skills development activities falling under any of the following subparagraphs: *<Amended by Act No. 10337, May 31, 2010 and Act No. 10339, Jun. 4, 2010>*

1. Vocational skills development training for workers employed by an employer other than the relevant employer;
2. Vocational skills development training in occupations in national key and strategic industries;
3. Vocational skills development training (referring to vocational skills development training conducted according to a training plan established in consultation with a trade union or a person representing a majority of workers in cases where a labor-management council does not exist) conducted according to a basic plan on workers' education and training and skills development decided by a labor-management council pursuant to Article 21 of the Act on the Promotion of Worker Participation and Cooperation;
4. Vocational skills development training conducted for workers on paid leave (excluding monthly and annual paid leave prescribed in the Labor Standards Act);
5. Vocational skills development activities falling into subparagraph 3 of paragraph (1); and
6. Vocational skills development activities conducted by the employer of a business meeting the criteria prescribed by the Presidential Decree.

(3) Necessary matters concerning the requirements, contents, procedures and levels of support or loans and preferential support under paragraphs (1) and (2) shall be prescribed by the Presidential Decree.

<This Article Wholly Amended by Act No. 9316, Dec. 31, 2008>

<Title of This Article Amended by Act No. 10337, May 31, 2010>

Article 21 Go to Article 17 *<Act No. 10337, May 31, 2010>*

Article 21-2 Go to Article 18 *<Act No. 10337, May 31, 2010>*

Article 22 (Support for Vocational Skills Development Activities

by Industry-Specific HRD Councils)

(1) If an industry-specific HRD council conducts vocational skills development activities falling under any of the following subparagraphs, the Minister of Employment and Labor may provide the industry-specific HRD council with support or loans for the necessary costs: *<Amended by Act No. 10337, May. 31, 2010 and Act No. 10339, Jun. 4, 2010>*

1. Survey and analysis of labor demand and supply and demand for vocational skills development training by industry;
2. Development and dissemination of standards for qualifications and vocational skills development training;
3. Activities of developing, complementing and disseminating vocational skills development training courses and media, etc.;
4. Deleted. *<Presidential Decree No. 10337, May 31, 2010>*
5. Deleted. *<Presidential Decree No. 10337, May 31, 2010>*
6. Other vocational skills development activities equivalent to activities under subparagraphs 1 through 3 and prescribed by the Presidential Decree.

(2) Necessary matters concerning the requirements, contents, procedures and levels of support or loans under paragraph (1) shall be prescribed by the Presidential Decree. *<Amended by Act No. 10337, May 31, 2010>*

(3) Deleted. *<Presidential Decree No. 10337, May 31, 2010>*
<This Article Wholly Amended by Act No. 9316, Dec. 31, 2008>
<Title of This Article Amended by Act No. 10337, May 31, 2010>

Article 23 (Support for Vocational Skills Development Activities by Vocational Skills Development Organizations)

(1) The Minister of Employment and Labor may provide support or loans for the costs required for vocational skills development activities conducted by non-profit corporations or non-profit organizations (hereinafter referred to as “vocational skills development organizations”) prescribed by the Presidential Decree. *<Amended by Act No. 10339, Jun. 4, 2010>*

(2) Necessary matters concerning the requirements, contents, procedures and levels of support or loans under paragraph (1) shall be prescribed by the Presidential Decree.

<This Article Wholly Amended by Act No. 9316, Dec. 31, 2008>

Article 23-2 (Preservation of Documents Related to Support and Loans)

(1) Any person who receives support or loans for the costs

of vocational skills development activities pursuant to Articles 12, 20, 22 and 23 (including anyone entrusted to conduct vocational skills development training) and any person who intends to conduct vocational skills development training for which workers are eligible to receive support or loans for expenses under Article 17 (1) 1 shall preserve relevant documents prescribed by the Ordinance of the Ministry of Employment and Labor for three years: Provided that the period for preserving documents concerning support or loans for the costs of installing and repairing facilities (including dormitories), equipment and instruments and materials to conduct vocational skills development training shall be prescribed by the Ordinance of the Ministry of Employment and Labor but not exceed ten years. *<Amended by Act No. 10337, May 31, 2010 and Act No. 10339, Jun. 4, 2010>*

(2) The documents under paragraph (1) may be prepared and kept in the form of electronic documents under subparagraph 1 of Article 2 of the Framework Act on Electronic Documents and Electronic Commerce. *<Newly Inserted by Act No. 10337, May 31, 2010 and Act No. 11461, Jun. 1, 2012>*

<This Article Newly Inserted by Act No. 9316, Dec. 31, 2008>

Article 24 (Recognition of Vocational Skills Development Training Courses, Cancellation of Recognition, etc.)

(1) A person who intends to conduct vocational skills development training (including any person who intends to be entrusted to conduct vocational skills development training) pursuant to Articles 20 and 23 shall obtain recognition of the relevant vocational skills development training courses from the Minister of Employment and Labor. *<Amended by Act No. 10337, May 31, 2010 and Act No. 10339, Jun. 4, 2010>*

(2) If a person who has obtained recognition of vocational skills development training courses under paragraph (1) falls under any of the following subparagraphs, the Minister of Employment and Labor may order a correction or cancel the recognition of the training courses concerned: Provided that where the person falls under any of subparagraphs 1 through 4, the recognition shall be cancelled: *<Amended by Act No. 10337, May 31, 2010 and Act No. 11272, Feb. 1, 2012>*

1. Where the person has obtained recognition under paragraph (1) in a false or other fraudulent ways;
2. Where the person has received or intends to receive expenses or loans in a false or other fraudulent ways;
3. Where the person has received or intends to receive fees from employers, employers' organizations, etc., entrusting

vocational skills development training, in a false or other fraudulent ways;

4. Where the person makes employers, employers' organizations, etc., entrusting vocational skills development training receive support or loans for their training costs in a false or other fraudulent ways;
5. Where the person conducts vocational skills development training in violation of the details recognized under paragraph (1);
6. Where the person fails to comply with the corrective order; and
7. Where the person fails to comply with an order to report and submit materials under Article 58 or complies with such order falsely.

(3) A person for whom the recognition is cancelled pursuant to paragraph (2) (excluding cases where training costs are less than the amount prescribed by the Presidential Decree among persons for whom the recognition is cancelled as they fall under subparagraphs 2 through 4 of paragraph (2)) may not be entrusted with vocational skills development training under Article 16 (1) and given recognition under paragraph (1) and Article 19 for up to five years from the date of cancellation.
<Newly Inserted by Act No. 10337, May 31, 2010>

(4) The scope, requirements, contents and valid period of the recognition of vocational skills development training courses under paragraphs (1) and other necessary matters shall be prescribed by the Presidential Decree. <Newly Inserted by Act No. 10337, May 31, 2010>

(5) Detailed criteria for the issuance of corrective orders and cancellation of recognition under paragraphs (2) and (3), specific periods of restricting recognition by type of reason for cancellation, and other necessary matters shall be prescribed by the Ordinance of the Ministry of Employment and Labor.
<Newly Inserted by Act No. 10337, May 31, 2010 and Amended by Act No. 11272, Feb. 1, 2012>

<This Article Wholly Amended by Act No. 9316, Dec. 31, 2008>

<Title of This Article Amended by Act No. 10337, May 31, 2010>

Article 25 Go to Article 55 <Act No. 10337, May 31, 2010>

Article 26 Go to Article 56 <Act No. 10337, May 31, 2010>

CHAPTER IV

**Vocational Skills Development Training Corporations,
Vocational Skills Development Training Facilities,
Vocational Skills Development Training Instructors, etc.**
<Amended by Act No. 10337, May 31, 2010>

Article 27 (Establishment, etc. of Public Vocational Training Facilities)

(1) The State, local governments or public organizations may establish and operate public vocational training facilities. In such cases, if the State or a local government intends to establish a public vocational training facility, it shall consult with the Minister of Employment and Labor, and if a public organization intends to establish a public vocational training facility, it shall obtain approval from the Minister of Employment and Labor. *<Amended by Act No. 10337, May 31, 2010 and Act No. 11272, Feb 2012>*

(2) If a public vocational training facility approved pursuant to paragraph (1) falls under any of the following subparagraphs, the Minister of Employment and Labor may cancel the approval: Provided that where it falls under subparagraph 1, the approval shall be cancelled: *<Amended by Act No. 10339, Jun. 4, 2010>*

1. Where the public vocational training facility has obtained approval in a false or other fraudulent ways;
2. Where the public vocational training facility fails to provide vocational skills development training for one year or more without any justifiable reason; and
3. Where the public vocational training facility violates this Act or any order issued under this Act.

(3) The Minister of Employment and Labor may request a relevant institution to submit materials with regard to the operation of public vocational training facilities established by the State, local governments or public organizations. *<Newly Inserted by Act No. 10337, May 31, 2010 and Amended by Act No. 11272, Feb 1, 2012>*

(4) Necessary matters concerning procedures for consultation or approval under paragraph (1) shall be prescribed by the Ordinance of the Ministry of Employment and Labor. *<Amended by Act No. 10337, May 31, 2010 and Act No. 10339, Jun. 4, 2010>*

<This Article Wholly Amended by Act No. 9316, Dec. 31, 2008>

Article 28 (Designated Vocational Training Facilities)

(1) A person who intends to establish and operate a

designated vocational training facility shall obtain designation from the Minister of Employment and Labor after meeting the following requirements: Provided that where an employer or an employers' organization that operates a facility dedicated to vocational skills development training for his/her workers intends to obtain designation, it may not meet the requirements referred to in subparagraphs 2 and 3, and where a person who intends to be entrusted to conduct vocational skills development training intends to obtain designation, it may not meet the requirements referred to in subparagraph 3: *<Amended by Act No 10339, Jun. 4, 2010>*

1. The person shall have human resources, facilities, equipment, etc. required to properly operate the relevant training facility: Provided that the use of the facility building shall comply with Article 2 (2) of the Building Act;
2. The person shall have actual experience in providing education and training required to properly operate the relevant training facility; and
3. The person shall have not less than one vocational skills development training instructor under Article 33, who is relevant to each type of occupation in which the person intends to provide vocational skills development training: Provided that this shall not apply to cases where a vocational skills development training instructor relevant to the type of occupation is not defined; and
4. The person shall meet other requirements prescribed by the Presidential Decree as necessary for the operation of a vocational skills development training facility.

(2) If a person intends to alter the matters prescribed by the Presidential Decree among the contents designated pursuant to paragraph (1), he/she shall obtain designation for the alteration from the Minister of Employment and Labor. *<Amended by Act No 10339, Jun. 4, 2010>*

(3) If a person who has obtained designation pursuant to paragraph (1) fails to provide vocational skills development training in the relevant facility for three months or more or intends to close the facility or if a person intends to alter designated contents other than the matters prescribed by the Presidential Decree pursuant to paragraph (2), he/she shall report this to the Minister of Employment and Labor. *<Amended by Act No 10339, Jun. 4, 2010>*

(4) Necessary matters concerning the contents of designation and detailed criteria for designation, procedures for designation, designation for alteration and reporting, etc. under paragraphs

(1) through (3) shall be prescribed by the Presidential Decree.
<This Article Wholly Amended by Act No. 9316, Dec. 31, 2008>

Article 29 (Reasons for Disqualification)

If a person who intends to have his/her vocational training facility designated under Article 28 falls under any of the following subparagraphs, he/she shall be disqualified for designation under Article 28: <Amended by Act No. 10337, May 31, 2010>

1. An incompetent, a quasi-incompetent or a minor;
2. A person who has been declared bankrupt but has not been reinstated yet;
3. A person who has been sentenced to imprisonment without prison labor or heavier punishment and for whom two years have not elapsed since the execution of such sentence was terminated (including cases where the execution is deemed to have been terminated) or exempted;
4. A person who has been sentenced to the suspension of execution of imprisonment without prison labor or heavier punishment and is still in the suspension period;
5. A person whose qualification has been suspended or lost in accordance with a court ruling;
6. A person for whom one year has not elapsed since the designation of the vocational training facility was cancelled under Article 31 (1) or a person who was suspended from providing vocational skills development training and is still in the suspension period;
7. A person for whom one year has not elapsed since the authorization for establishing a lifelong education facility or the registration thereof was cancelled under Article 42 of the Lifelong Education Act or a person who was suspended from running lifelong education courses and is still in the suspension period;
8. A person for whom one year has not elapsed since the registration of his/her private teaching institute was cancelled or the closure of his/her lesson school was ordered under Article 17 of the Act on the Establishment and Operation of Private Teaching Institutes and Extracurricular Lessons or a person whose private teaching institute or lesson school was suspended from providing training and is still in the suspension period;
9. A person subjected to restrictions on entrustment under Article 16 (3) or restrictions on recognition under Article 19 (3) and Article 24 (3); and

10. A corporation which has an executive falling under any of subparagraphs 1 through 9.

<This Article Wholly Amended by Act No. 9316, Dec. 31, 2008>

Article 30 (Training Fees)

(1) A person who operates a designated vocational training facility may receive training fees from workers.

(2) A person who operates a designated vocational training facility shall take necessary measures to protect workers, such as a return of training fees, etc., if workers are unable to continue to receive vocational skills development training or if he/she is unable to continue vocational skills development training due to the cancellation of designation, closure of business, etc.

(3) Necessary matters concerning reasons for a return of training fees, the amount to be returned, etc., under paragraph (2) shall be prescribed by the Presidential Decree.

<This Article Wholly Amended by Act No. 9316, Dec. 31, 2008>

Article 31 (Cancellation, etc. of Designation of Designated Vocational Training Facilities)

(1) If a designated vocational training facility under Article 28 falls under any of the following subparagraphs, the Minister of Employment and Labor may order a correction, cancel the designation or order the suspension of vocational skills development training for up to one year: Provided that where it falls under subparagraph 1 or 3 (limited to cases falling under any of subparagraphs 1 through 8 of Article 29), the designation shall be cancelled: *<Amended by Act No. 10339, Jun. 4, 2010 and Act No. 11272, Feb. 1, 2012>*

1. Where the designated vocational training facility has obtained designation under Article 28 in a false or other fraudulent ways;
2. Where the designated vocational training facility fails to meet the requirements for designation prescribed in Article 28;
3. Where the designated vocational training facility falls under any of the subparagraphs of Article 29;
4. Where the designated vocational training facility fails to provide vocational skills development training for one year or more without any justifiable reason;
5. Where the designated vocational training facility is operated in a fraudulent way, such as altering its designated contents without obtaining designation for the alteration, etc.;

6. Where the designated vocational training facility puts exaggerated or false advertisements when recruiting trainees;
 7. Where the designated vocational training facility fails to comply with the corrective order; and
 8. Where the designated vocational training facility violates this Act or any order issued under this Act.
- (2) Detailed criteria for the issuance of corrective orders, cancellation of designation or suspension of training under paragraph (1) shall be prescribed by the Presidential Decree in consideration of reasons for the punishment, the degree of the offence, etc. *<Amended by Act No. 10339, Jun. 4, 2010 and Act No. 11272, Feb. 1, 2012>*
- <This Article Wholly Amended by Act No. 9316, Dec. 31, 2008>*

Article 32 (Establishment, etc. of Vocational Skills Development Training Corporations)

(1) The Minister of Employment and Labor may permit the establishment of a non-profit corporation (hereinafter referred to as "vocational skills development training corporation") aimed at conducting vocational skills development activities described in any of the following subparagraphs: *<Amended by Act No. 10339, Jun. 4, 2010>*

1. Vocational skills development training;
2. Surveys or research to develop workers' vocational skills; and
3. Activities of developing and disseminating vocational skills development training courses, media, etc.

(2) If a vocational skills development training corporation falls under any of the following subparagraphs, the Minister of Employment and Labor may order a correction or cancel the permission for the establishment of the relevant corporation: Provided that where it falls under any of subparagraphs 1 through 3, the permission shall be cancelled: *<Amended by Act No. 10339, Jun. 4, 2010>*

1. Where the corporation has obtained permission for its establishment in a false or other fraudulent ways;
2. Where the corporation violates the requirements for permission for establishment;
3. Where the corporation is impossible to achieve its objectives;
4. Where the corporation conducts activities other than the intended activities;
5. Where the corporation is subject to restrictions on entrustment under Article 16 (3) or restrictions on

recognition under Article 19 (3) and Article 24 (3) or its designation as a designated vocational skills development training facility is cancelled under Article 31 (1);

6. Where the corporation violates this Act or any order issued under this Act or its articles of incorporation; and
7. Where the corporation fails to commence an intended activity without any justifiable reason within six months from the date on which its establishment is permitted or produces no result for one year or more.

(3) If a vocational skills development training corporation engages in profit-making activities and falls under any of the following subparagraphs, the Minister of Employment and Labor may order the corporation to correct or suspend such profit-making activities: *<Amended by Act No. 10339, Jun. 4, 2010>*

1. Where the corporation uses its profits for activities other than the intended ones;
2. Where the continuation of the relevant activities is deemed against the objectives of the vocational skills development training corporation.

(4) Necessary matters concerning matters contained in the articles of incorporation of a vocational skills development training corporation, requirements and criteria for permission, etc. shall be prescribed by the Presidential Decree.

(5) The provisions governing incorporated foundations of the Civil Act shall apply mutatis mutandis to matters not provided for in this Act concerning vocational skills development training corporations.

<This Article Wholly Amended by Act No. 9316, Dec. 31, 2008>

Article 32-2 (Special Cases for Dissolution of Vocational Skills Development Training Corporations)

(1) If a vocational skills development training corporation intends to turn into a for-profit designated vocational training facility, it may dissolve after obtaining permission from the Minister of Employment and Labor, notwithstanding Article 77 of the Civil Act. *<Amended by Act No. 10339, Jun. 4, 2010>*

(2) A vocational skills development training corporation which intends to obtain permission from the Minister of Employment and Labor under paragraph (1) shall submit to the Minister of Employment and Labor, an application for permission for dissolution accompanied by a plan for disposal of remaining assets. *<Amended by Act No. 10339, Jun. 4, 2010>*

(3) Dissolution under paragraph (1) and a plan for disposal of remaining assets under paragraph (2) shall require consent of at least two thirds of directors.

(4) A vocational skills development training corporation which is dissolved pursuant to paragraph (1) may revert all or part of its remaining assets to any person determined by the plan for disposal of remaining assets, notwithstanding Article 80 of the Civil Act. In this case, a person to whom the relevant assets are reverted shall not dispose of or change the assets for any purpose other than vocational skills development training for ten years from the date the assets are reverted.

(5) The Minister of Employment and Labor may collect an amount not exceeding that equivalent to the assets disposed of or changed or order their restoration to the original state for a person who violates the latter part of paragraph (4), as prescribed by the Presidential Decree. *<Amended by Act No. 10339, Jun. 4, 2010>*

(6) In order to examine matters concerning dissolution of vocational skills development training corporations or disposal of remaining assets, a council for adjustment and examination of training corporations may be set up under the Minister of Employment and Labor. *<Amended by Act No. 10339, Jun. 4, 2010>*

(7) Article 56 (4) shall apply mutatis mutandis to a person who fails to pay the amount of collection by the deadline after being ordered to do so pursuant to paragraph (5). *<Amended by Act No. 10337, May 31, 2010>*

(8) Necessary matters concerning the management, etc. of assets reverted under paragraph (4), the composition and operation of the council for adjustment and examination of training corporations under paragraph (6) and other necessary matters shall be prescribed by the Ordinance of the Ministry of Employment and Labor. *<Amended by Act No. 10339, Jun. 4, 2010>*

<This Article Wholly Amended by Act No. 9316, Dec. 31, 2008>

Article 33 (Vocational Skills Development Training Instructors, etc.)

(1) Vocational skills development training instructors or other persons with expert knowledge in the relevant area and prescribed by the Presidential Decree may teach workers for their vocational skills development training.

(2) A person who intends to become a vocational skills development training instructor shall be issued with a vocational skills development instructor certificate by the Minister of Employment and Labor after satisfying the criteria prescribed by the Presidential Decree, such as completion of training courses, etc. aimed at training vocational skills development training instructors under Article 36. *<Amended by Act No. 10339, Jun. 4, 2010>*

(3) A person who intends to be issued with a vocational skills development training instructor certificate under paragraph (2) shall pay fees, as prescribed by the Ordinance of the Ministry of Employment and Labor. *<Newly Inserted by Act No. 10337, May 31, 2010 and Amended by Act No. 11272, Feb. 1, 2012>*

(4) The types, grades and qualification standards of vocational skills development training instructors and other necessary matters concerning vocational skills development training instructors shall be prescribed by the Presidential Decree. *<Amended by Act No. 10337, May 31, 2010>*

<This Article Wholly Amended by Act No. 9316, Dec. 31, 2008>

Article 34 (Reasons for Disqualification)

A person who falls under any of the following subparagraphs shall be disqualified from becoming a vocational skills development training instructor under Article 33:

1. An incompetent or a quasi-incompetent;
2. A person who has been sentenced to imprisonment without prison labor or heavier punishment and for whom two years have not elapsed since the execution of such sentence was terminated or exempted (including cases where the execution is deemed to have been terminated);
3. A person who was sentenced to the suspension of execution of imprisonment without prison labor or heavier punishment and is still in the suspension period;
4. A person whose qualification has been suspended or lost in accordance with a court ruling; and
5. A person for whom three years have not elapsed since his/her qualification was cancelled pursuant to subparagraph 1, 3 or 4 of Article 35 (1).

<This Article Wholly Amended by Act No. 9316, Dec. 31, 2008>

Article 35 (Cancellation, etc. of Qualification of Vocational Skills Development Training Instructors)

(1) If a person who has obtained his/her qualification as a vocational skills development training instructor falls under any of the following subparagraphs, the Minister of Employment and Labor may cancel the qualification or suspend the qualification for up to three years: Provided that where such person falls under subparagraph 1 or 2, the qualification shall be cancelled: *<Amended by Act No. 10337, May 31, 2010 and Act No. 10339, Jun. 4, 2010>*

1. Where the person is issued with the qualification certificate in a false or other fraudulent ways;
2. Where the person falls under any of the subparagraphs 1

through 4 of Article 34;

3. Where the person causes a serious trouble to vocational skills development training due to his/her willful misconduct or gross negligence; and
4. Where the person let others use his/her qualification certificate.

(2) Detailed criteria for the cancellation and suspension of a qualification under paragraph (1) shall be determined by the Ordinance of the Ministry of Employment and Labor in consideration of reasons for such cancellation and suspension, the degree of violation, etc. *<Amended by Act No. 10339, Jun. 4, 2010>*

<This Article Wholly Amended by Act No. 9316, Dec. 31, 2008>

Article 36 (Cultivation of Vocational Skills Development Training Instructors)

(1) The State, local governments, public organizations or a corporations or organizations announced by the Minister of Employment and Labor may establish and operate training facilities or training courses to cultivate vocational skills development training instructors. In this case, if any person other than the State and local governments intends to establish and operate training facilities or training courses, he/she shall obtain approval from the Minister of Employment and Labor. *<Amended by Act No. 10339, Jun. 4, 2010>*

(2) A person who intends to obtain approval pursuant to paragraph (1) shall meet the following requirements:

1. The person shall have human resources, facilities and equipment required to properly operate training facilities or training courses intended to cultivate vocational skills development training instructors;
2. The person shall have experience in providing education and training required to properly operate the training facilities and training courses;
3. The person shall not fall under the reasons for disqualification under each subparagraph of Article 29; and
4. The person shall meet other requirements prescribed by the Presidential Decree, as necessary for the cultivation of vocational skills development training instructors.

(3) If a person who has obtained approval pursuant to paragraph (1) falls under any of the following subparagraphs, the Minister of Employment and Labor may order a correction

or cancel the approval: Provided that where such person falls under subparagraph 1 or 2, the approval shall be cancelled:
<Amended by Act No. 10339, Jun. 4, 2010>

1. Where the person has obtained approval in a false or other fraudulent ways;
2. Where the person falls under any of the subparagraphs of Article 29: Provided that this shall not apply if the relevant executive is replaced with a newly appointed one within three months in the case of subparagraph 10 of Article 29;
3. Where the person fails to meet the requirements for approval under paragraph (2);
4. Where the person has not conducted training to cultivate vocational skills development training instructors for one year or more without any justifiable reason;
5. Where the person fails to comply with the corrective order; and
6. Where the person violates this Act or any order issued under this Act.

(4) Necessary matters concerning types of training facilities and training courses and approval procedures under paragraph (1), details of the requirements for approval under paragraph (2) 1 and 2, detailed criteria for the issuance of corrective orders and the cancellation of approval under paragraph (3) shall be prescribed by the Ordinance of the Ministry of Employment and Labor. <Amended by Act No. 10339, Jun. 4, 2010>

<This Article Wholly Amended by Act No. 9316, Dec. 31, 2008>

Article 37 (Competency Development for Vocational Skills Development Training Instructors)

(1) The Minister of Employment and Labor may conduct vocational skills development activities to develop the competency of vocational skills development training instructors.
<Amended by Act No. 10339, Jun. 4, 2010>

(2) If a person conducts vocational skills development activities to develop the competency of vocational skills development training instructors, the Minister of Employment and Labor may provide him/her with support or loans for the necessary expenses. <Amended by Act No. 10339, Jun. 4, 2010>

(3) Necessary matters concerning the contents of activities, implementation methods, and the requirements, contents, procedures and levels of support under paragraphs (1) and (2) shall be prescribed by the Presidential Decree.

<This Article Wholly Amended by Act No. 9316, Dec. 31, 2008>

Article 38 (Training Standards for Vocational Skills Development Training)

(1) The Minister of Employment and Labor may set training standards with regard to training goals, contents, facilities and equipment, instructors, etc., for each type of occupation in order to carry out vocational skills development training in a systematic and effective manner. *<Amended by Act No. 10339, Jun. 4, 2010>*

(2) The details of training standards under paragraph (1) and procedures for the establishment and change of such standards shall be prescribed by the Presidential Decree.

<This Article Wholly Amended by Act No. 9316, Dec. 31, 2008>

CHAPTER V

Polytechnic Colleges

<Newly Inserted by Act No. 10337, May 31, 2010>

Article 39 (Establishment of Polytechnic Colleges)

(1) The State, local governments or school juristic persons under the Private School Act (hereinafter referred to as "school juristic persons") may establish and operate polytechnic colleges to cultivate workforces needed by industries and help workers develop their vocational skills.

(2) If the State intends to establish and operate a polytechnic college, the head of the relevant central administrative agency shall consult with the Minister of Education and the Minister of Employment and Labor, and if a local government intends to establish and operate a polytechnic college, the head of the relevant local government shall obtain authorization from the Minister of Education after consultation with the Minister of Employment and Labor. *<Amended by Act No. 11272, Feb. 1, 2012 and Act No. 11690, Mar. 23, 2013>*

(3) If a school juristic person intends to establish and operate a polytechnic college, it shall obtain authorization from the Minister of Education after receiving recommendation from the Minister of Employment and Labor. *<Amended by Act No. 11272, Feb. 1, 2012 and Act No. 11690, Mar. 23, 2013>*

(4) A person who intends to establish and operate a polytechnic college shall meet the criteria for establishment prescribed by the Presidential Decree, such as facilities and equipment, etc.

(5) A polytechnic college which has obtained authorization

from the Minister of Education under paragraph (2) or (3) shall be considered a vocational skills development training facility and may use a different name in consideration of its characteristics. *<Amended by Act No. 11690, Mar. 23, 2013>*

<This Article Newly Inserted by Act No. 10337, May 31, 2010>

Article 40 (Classification, etc., of Courses)

(1) The education and training courses of a polytechnic colleges shall be classified as follows: *<Amended by Act No. 11272, Feb. 1, 2012>*

1. Multi-skilled technician courses: education and training courses intended to cultivate workers who, with skills and knowledge in two occupational areas or more, are able to contribute to productivity improvement and the solution of technical problems throughout the whole process from product development to manufacturing;

1-2. Degree-conferring advanced major courses: advanced major courses designed to promote and support the continuing education of people who have graduated from a polytechnic college or a junior college;

2. Vocational training courses;

A. Master craftsman courses: vocational training courses intended to cultivate middle managers of production sites who, with the highest level of skills in their major areas and knowledge of production management techniques, perform such duties as work management and the provision of guidance and supervision, etc. to technicians under their control;

B. Vocational skills development training courses; and

C. Other education and training courses except multi-skilled technician courses and degree-conferring advanced major courses.

(2) The head of a polytechnic college (hereinafter referred to as "dean") shall make efforts to strike a balance between multi-skilled technician courses and vocational training courses.

(3) A polytechnic college may carry out the following activities apart from the education and training courses referred to in paragraph (1): *<Amended by Act No. 11272, Feb. 1, 2012>*

1. Vocational skills development activities (excluding vocational skills development training);

2. Industry-academia cooperation activities, such as providing technical guidance to small and medium enterprises and operating business incubation centers, etc.;

3. Activities entrusted by the Minister of Employment and Labor, the heads of other central administrative agencies, the

heads of local governments, employers, etc.;

4. Job counseling and employment promotion for students and trainees; and

5. Activities, such as lifelong skills development for local residents, etc., which can contribute to the development of the local community.

(4) Matters concerning the establishment and operation of multi-skilled technician courses, degree-conferring advanced major courses and vocational training courses shall be prescribed by the Presidential Decree. *<Amended by Act No. 11272, Feb. 1, 2012>*

<This Article Newly Inserted by Act No. 10337, May 31, 2010>

Article 40-2 (Authorization, etc., of Degree-conferring Advanced Major Courses)

(1) A person who intends to establish and operate a degree-conferring advanced major course shall run the relevant multi-skilled technician course and obtain authorization from the Minister of Employment and Labor.

(2) The Minister of Employment and Labor shall consult with the Minister of Education before authorizing the establishment of a degree-conferring advanced major course pursuant to paragraph (1). *<Amended by Act No. Mar. 23, 2013>*

(3) A degree-conferring advanced major course established and operated under paragraphs (1) and (2) shall be regarded as an advanced major course under Article 49 of the Higher Education Act.

(4) A person who may take a degree-conferring advanced major course shall have graduated from a polytechnic college or a junior college in the same department and had a career in a related field.

(5) Criteria for authorization under paragraphs (1) through (4) and specific matters concerning admission qualifications shall be prescribed by the Presidential Decree.

<This Article Newly Inserted by Act No. 11272, Feb. 1, 2012>

Article 41 (Recognition of Credits and Conferment of Degrees)

(1) The dean may recognize the following academic credits as credits earned at the polytechnic college, under the conditions prescribed by school regulations, within the extent prescribed by the Presidential Decree:

1. Credits earned at other schools at home and abroad, which are equivalent to or higher than a junior college under subparagraph 4 of Article 2 of the Higher Education Act;

2. Credits recognized under Article 7 of the Act on Recognition of Credits, etc.; and

3. Credits earned at a lifelong education institute under subparagraph 2 of Article 2 of the Lifelong Education Act.

(2) The dean may recognize a person falling under any of the following subparagraphs as having earned academic credits corresponding to the relevant achievements, as prescribed by the Presidential Decree: *<Amended by Act No. 10338, May 31, 2010>*

1. A person selected as a master craftsman of Korea under Article 11 of the Act on Encouragement of Skilled Crafts;

2. A person selected as a skilled craft master under Article 13 of the Act on Encouragement of Skilled Crafts;

3. A person who has won a award in a domestic skills competition or a world skills competition under Article 20 or 21 of the Act on Encouragement of Skilled Crafts;

4. A person who has experience of working in an industrial entity in the field of skill and craft related to his/her academic major; and

5. A person who has completed an one-year or longer vocational skills development training course.

(3) A person who has completed a multi-skilled technician course at a polytechnic college shall be granted a bachelor of industry degree equivalent to an associate degree under Article 50 of the Higher Education Act.

<This Article Newly Inserted by Act No. 10337, May 31, 2010>

Article 41-2 (Conferment of Degrees in Degree-conferring Advanced Major Courses)

A person who took a degree-conferring advanced major course established and operated under Article 40-2 and has completed the curriculum prescribed by the school regulations shall be granted a bachelor's degree pursuant to Article 50-2 (1) of the Higher Education Act.

<This Article Newly Inserted by Act No. 11272, Feb. 1, 2012>

Article 42 (School Regulations)

(1) The dean may establish or amend school regulations in order to efficiently operate the polytechnic college.

(2) If the dean has established or amended school regulations pursuant to paragraph (1), he/she shall make a report (including reports made using an information network under Article 2 (1) 1 of the Act on Promotion of Information and Communications Network Utilization and Information Protection, etc.) on them to the Minister of Education and the

Minister of Employment and Labor. *<Amended by Act No. 11272, Feb. 1, 2012 and Act No. 11690, Mar. 23, 2013>*

(3) Procedures for the establishment and amendment of school regulations under paragraph (1), entries to be made in school regulations and other necessary matters shall be prescribed by the Presidential Decree.

<This Article Newly Inserted by Act No. 10337, May 31, 2010>

Article 43 (Types, Qualifications and Fixed Number of Teachers, etc.)

(1) Each polytechnic college shall have a dean.

(2) Teachers in a polytechnic college shall be classified into professors, associate professors and assistant professors in addition to the dean. *<Amended by Act No. 10866, Jul. 21, 2011>*

(3) A polytechnic college may have vocational skills development training instructors under Article 33, adjunct teachers holding concurrent positions in academia and industry (referring to persons who have expert knowledge in the relevant field and concurrently hold a post of a teacher in a polytechnic college while engaging in that field; hereinafter the same shall apply), invited teachers (referring to persons appointed under Article 44 to teach subjects requiring skills and expert knowledge in a special field; hereinafter the same shall apply), part-time instructors and teaching assistants under the conditions prescribed by the Presidential Decree, in addition to the teachers referred to in paragraph (2).

(4) Matters concerning the criteria for persons qualified to become teachers, adjunct teachers, invited teachers, part-time instructors and teaching assistants under paragraphs (2) and (3) shall be prescribed by the Presidential Decree.

(5) Matters concerning the fixed numbers of teachers, vocational skills development training instructors, adjunct teachers, invited teachers, part-time instructors, teaching assistants and other clerical employees under paragraphs (2) and (3) shall be prescribed by the Presidential Decree.

<This Article Newly Inserted by Act No. 10337, May 31, 2010>

Article 44 (Appointment, Retirement Age, Duties, etc., of Teachers, etc.)

(1) The appointment of teachers under Article 43 (2) shall be governed by Acts and subordinate statutes related to education: Provided that the head of a polytechnic college affiliated with the Human Resources Development Service of Korea under Article 26 (1) of the Act on the Human Resources Development

Service of Korea shall be appointed by the school juristic person establishing and operating the relevant polytechnic college, with the approval of the Minister of Employment and Labor notwithstanding Article 53 (1) of the Private School Act. *<Amended by Act No. 11272, Feb. 1, 2012>*

(2) The retirement age of teachers under Article 43 (2) shall be as follows notwithstanding Article 47 (1) of the Public Educational Officials Act and Article 53-2 (3) of the Private School Act:

1. The age prescribed by the Presidential Decree where the polytechnic college is established and operated by the State;

2. The age prescribed by bylaws where the polytechnic college is established and operated by a local government; and

3. The age of 60 years or above prescribed by the articles of incorporation where the polytechnic college is established and operated by a school juristic person.

(3) Matters concerning the duties of teachers under Article 43 (2) shall be governed by Acts and subordinate statutes related to education.

(4) Matters concerning the appointment, retirement ages and duties of vocational skills development training instructors, adjunct teachers, invited teachers, part-time instructors and teaching assistants shall be prescribed by the Presidential Decree in consideration of the characteristics of polytechnic colleges.

<This Article Newly Inserted by Act No. 10337, May 31, 2010>

Article 45 (Dispatch of School Personnel and Use of Facilities and Equipment)

(1) If it is necessary for the efficient conduct of education, training and activities under Article 40, the dean may send teachers and staff of the relevant polytechnic college to other polytechnic colleges, the Human Resources Development Service of Korea under the Act on the Human Resources Development Service of Korea (hereinafter referred to as "HRD Service of Korea"), industrial entities (hereinafter referred to as "industrial entities") meeting the standards determined and announced by the Minister of Employment and Labor, and so on to work there for a certain period, and receive teachers and staff of other polytechnic colleges, staff of the HRD Service of Korea and industrial entities, etc., sent to work in the polytechnic college. *<Amended by Act No. 11272, Feb. 1, 2012>*

(2) If it is necessary in conducting education, training and activities under Article 40, the dean may provide the education and training facilities and equipment of the relevant polytechnic

college to other polytechnic colleges, the HRD Service of Korea, universities, high schools, etc., and allow them to use such facilities and equipment.

<This Article Newly Inserted by Act No. 10337, May 31, 2010>

Article 46 (Submission of Business Plan and Fiscal Year, etc.)

(1) The dean shall prepare a business plan for the relevant fiscal year and submit it to the Minister of Employment and Labor every year, as prescribed by the Presidential Decree: Provided that a school juristic person which establishes and operates two polytechnic colleges or more may prepare and submit a comprehensive business plan for all of its polytechnic colleges. *<Amended by Act No. 11272, Feb. 1, 2012>*

(2) The fiscal year of each polytechnic college shall coincide with the fiscal year of the government.

(3) A polytechnic college shall account for the revenues and expenditures of activities under Article 40 (3) 1 through 3 separately from the revenues and expenditures of other activities.

<This Article Newly Inserted by Act No. 10337, May 31, 2010>

Article 47 (Tuition, etc.)

(1) A polytechnic college may receive tuition and other fees from students of its multi-skilled technician courses and degree-conferring advanced major courses and trainees of its vocational training courses. *<Amended by Act No. 11272, Feb. 1, 2012>*

(2) Necessary matters concerning tuition and other fees under paragraph (1) shall be prescribed by the Ordinance of the Ministry of Employment and Labor. *<Amended by Act No. 11272, Feb. 1, 2012>*

<This Article Newly Inserted by Act No. 10337, May 31, 2010>

Article 48 (Support for Polytechnic Colleges and Students, etc.)

(1) The State, local governments or employers, etc., may provide support to a person who establishes and operates a polytechnic college to cover all or some of the costs necessary for the establishment of education and training facilities, purchase of equipment and operation of school, etc.

(2) The State or local governments may, if necessary for the establishment and operation of a polytechnic college, lend state and public property unconditionally to a person who establishes and operates a polytechnic college (limited to school juristic persons established by the State, local governments or public

organizations) notwithstanding the State Property Act or the Public Property and Commodity Management Act, and permit such person to use and profit from such property to construct buildings or other facilities.

(3) The State or local governments may provide support to students of multi-skilled technician courses and degree-conferring advanced major courses and trainees of vocational training courses at polytechnic colleges to cover all or some of the expenses necessary for education and training during the period of attendance at school. *<Amended by Act No. 11272, Feb. 1, 2012>*

<This Article Newly Inserted by Act No. 10337, May 31, 2010>

Article 49 (Revocation, etc. of Authorization)

(1) If a polytechnic college falls under any of the following subparagraphs, the Minister of Education may revoke the authorization for the establishment: *<Amended by Act No. 11690, Mar. 23, 2013>*

1. Where the polytechnic college has obtained authorization under Article 39 in a false or other fraudulent ways;

2. Where the polytechnic college fails to meet the criteria for establishment, such as facilities and equipment, etc., under Article 39 (4); and

3. Where the polytechnic college has not provided classes for two months or more excluding the prescribed vacation period without any justifiable reason;

(2) If the Minister of Education intends to revoke the authorization for the establishment of a polytechnic college pursuant to paragraph (1), he/she shall consult with the Minister of Employment and Labor. *<Amended by Act No. 11272, Feb. 1, 2012 and Act No. 11690, Mar. 23, 2013>*

(3) If the Minister of Education intends to revoke the authorization for the establishment of a polytechnic college pursuant to paragraph (1), he/she shall hold a hearing. *<Amended by Act No. 11690, Mar. 23, 2013>*

<This Article Newly Inserted by Act No. 10337, May 31, 2010>

Article 49-2 (Revocation, etc. of Authorization for Establishment of Degree-conferring Advanced Major Courses)

(1) If a polytechnic college which has obtained authorization for the establishment of a degree-conferring advanced major course pursuant to Article 40-2 (1) falls under any of the following paragraphs, the Minister of Employment and Labor may revoke the authorization:

1. Where the polytechnic college has obtained authorization under Article 40-2 (1) in a false or other fraudulent ways;

2. Where the polytechnic college fails to meet the criteria for authorization under Article 40-2 (5); and

3. Where the polytechnic college has not provided classes for two months or more excluding the prescribed vacation period without any justifiable reason;

(2) If the Minister of Employment and Labor intends to revoke the authorization for the establishment of a degree-conferring advanced major course pursuant to paragraph (1), he/she shall consult with the Minister of Education.
<Amended by Act No. 11690, Mar. 23, 2013>

<This Article Newly Inserted by Act No. 11272, Feb. 1, 2012>

Article 50 (Supervision, etc., of Polytechnic Colleges)

(1) With regard to a polytechnic college and a school juristic person which establishes and operates a polytechnic college, the Minister of Employment and Labor shall be entrusted to take charge of the following matters among matters within the authority of the Minister of Education under Acts and subordinate statutes related to education: <Amended by Act No. 11272, Feb. 1, 2012 and Act No. 11690, Mar. 23, 2013>

1. Guidance and supervision of the polytechnic college and the school juristic person which establishes and operates a polytechnic college;

2. Approval of inauguration of executives of the school juristic person which establishes and operates a polytechnic college and revocation thereof;

3. Acceptance of a report on appointment and dismissal of teachers of a polytechnic college established by the school juristic person and matters concerning requests for discharge, dismissal, etc.; and

4. Other matters prescribed by the Presidential Decree.

(2) The Minister of Education and the Minister of Employment and Labor may have a polytechnic college or a person who establishes and operates a polytechnic college make a necessary report or submit materials. <Amended by Act No. 11272, Feb. 1, 2012 and Act No. 11690, Mar. 23, 2013>

<This Article Newly Inserted by Act No. 10337, May 31, 2010>

Article 51 (Prohibition of Use of Similar Names)

Any person that is not a polytechnic college shall not use in its name, the term "polytechnic college" or any other similar term.

<This Article Newly Inserted by Act No. 10337, May 31, 2010>

Article 52 (Relationship with Other Acts)

The provisions governing junior colleges in Acts and subordinate statutes related to education shall apply to matters not prescribed in this Act concerning the establishment and operation of polytechnic colleges.

<This Article Newly Inserted by Act No. 10337, May 31, 2010>

CHAPTER VI

Evaluation of Vocational Skills Development Activities and Sanctions on Misconducts, etc.

<Amended by Act No. 9316, Dec. 31, 2008 and Act No. 10337, May 31, 2010>

Article 53 (Evaluation of Vocational Skills Development Training Facilities, etc.)

(1) The Minister of Employment and Labor may conduct an evaluation of persons falling under any of the following subparagraphs to improve the quality of vocational skills development training with regard to matters prescribed by the Presidential Decree, such as the ability to conduct training and training outcomes, etc.: *<Amended by Act No. 11272, Feb. 1, 2012>*

1. Persons entrusted to conduct vocational skills development training under Article 16;

2. Persons who conduct vocational skills development training after obtaining recognition of vocational skills development training courses under Article 19 or 24;

3. Persons, other than those specified in subparagraphs 1 and 2, who conduct vocational skills development training entrusted by the head of a central administrative agency or local government (limited to those whom the Minister of Employment and Labor has decided to evaluate after consultation with the head of the relevant central administrative agency or local government); and

4. Vocational skills development training facilities and vocational skills development training corporations.

(2) If the Minister of Employment and Labor has conducted an evaluation pursuant to paragraph (1), he/she shall disclose the results to employers, workers, etc. *<Amended by Act No. 11272, Feb. 1, 2012>*

(3) Necessary matters concerning the targets, contents and methods of the evaluation and disclosure of its results, etc.

under paragraphs (1) and (2) shall be prescribed by the Presidential Decree.

<This Article Wholly Amended by Act No. 10337, May 31, 2010>

Article 54 (Differentiated Support According to Results of Evaluation of Vocational Skills Development Training Facilities)

(1) When providing support or loans under this Act, the Minister of Employment and Labor may differentiate them in accordance with the results of an evaluation under Article 53.
<Amended by Act No. 11272, Feb. 1, 2012>

(2) Necessary matters concerning the criteria and contents, etc. for differentiated support under paragraph (1) shall be prescribed by the Presidential Decree.

<This Article Newly Inserted by Act No. 10337, May 31, 2010>

Article 55 (Restrictions on Support, Loans or Taking Training for Misconducts)

(1) If a worker who is receiving or has received vocational skills development training under Article 12 or 15 falls under any of the following subparagraphs, the State or local governments may restrict him/her from taking vocational skills development training under Articles 12 and 15 or may not provide support or loans under Articles 17 and 18 for a period prescribed by the Ordinance of the Ministry of Employment and Labor but not exceeding three years from the date (the date on which the entrustment contract is terminated in the case of subparagraph 2) on which he/she receives or intends to receive training expenses and training allowances in a false or fraudulent way: *<Amended by Act No. 11272, Feb. 1, 2012>*

1. Where the worker has received or intends to receive training expenses and training allowances in a false or other fraudulent ways; and
2. Where the entrustment contract is terminated because the worker commits an act falling under any of the subparagraphs of Article 16 (2) in collusion with a person entrusted with vocational skills development training.

(2) If a worker, an employer, an employers' organization, etc., an industry-specific HRD council or a vocational skills development organization that intends to receive or has received support or loans for expenses under Articles 17, 18, 20, 22 and

23 falls under any of the following subparagraphs, the Minister of Employment and Labor may restrict them from taking vocational skills development training under Articles 12 and 15 or may not provide support or loans under Articles 17, 18, 20, 22 and 23 for a period prescribed by the Ordinance of the Ministry of Employment and Labor but not exceeding three years from the date (the date on which the recognition is cancelled in the case of subparagraph 2) on which he/she/it intends to receive or receives support or loans for expenses in a false or other fraudulent ways: *<Amended by Act No. 11272, Feb. 1, 2012>*

1. Where he/she/it has received or intends to receive support or loans for expenses in a false or other fraudulent ways; and
2. Where the recognition is cancelled because he/she/it commits an act falling under any of the subparagraphs of Article 19 (2) or Article 24 (2) in collusion with a person entrusted to conduct vocational skills development training under Article 16 or a person who conducts vocational skills development training after obtaining recognition of vocational skills development training courses under Articles 19 and 24.

<This Article Wholly Amended by Act No. 10337, May 31, 2010>

Article 56 (Repayment of Fraudulently-Received Amount and Additional Collection)

(1) The State or local governments may order repayment of the amount of support or loan received in a false or other fraudulent ways among the amount of support or loan already paid to a person whose entrustment contract is terminated under Article 16 (2) or a worker who is restricted from taking training or receiving support or loans under Article 55 (1).

(2) The Minister of Employment and Labor may order repayment of the amount of support or loan received in a false or other fraudulent ways among the amount of support or loan already paid to a person for whom recognition is cancelled under Article 19 (2) or Article 24 (2) or a worker, an employer, an employers' organization, etc., an industry-specific HRD council or a vocational skills development organization that is restricted from taking training or receiving support or loans under Article 55 (2). *<Amended by Act No. 11272, Feb. 1, 2012>*

(3) If the State, a local government or the Minister of Employment and Labor orders repayment pursuant to paragraphs (1) and (2), it/he/she may collect an amount specified in any of the following subparagraphs in addition to

the amount of support or loan received in a false or other fraudulent ways in accordance with the standards prescribed by the Ordinance of the Ministry of Employment and Labor: *<Amended by Act No. 11272, Feb. 1, 2012>*

1. A person whose entrustment contract is terminated under Article 16 (2) or a person for whom recognition is cancelled under Article 19 (2) or Article 24 (2): an amount determined in accordance with the following classification;

A. Where the fraudulently received amount is less than the amount prescribed by the Presidential Decree: not more than five times the amount prescribed by the Presidential Decree;

B. Where the fraudulently received amount is equal to or higher than the amount prescribed by the Presidential Decree: not more than the amount prescribed by the Presidential Decree.

2. A worker, an employer, an employers' organization, etc., an industry-specific HRD council or a vocational skills development organizations that is restricted from receiving support or loans or taking training under Article 55: not more than the fraudulently received amount.

(4) If a person fails to pay the amount ordered to be repaid or amount to be collected additionally under paragraphs (1) through (3) within the deadline, the State, local governments or the Minister of Employment and Labor may collect it according to the process of recovery of national or local taxes in arrears. *<Amended by Act No. 11272, Feb. 1, 2012>*

(5) Necessary matters concerning detailed criteria for additional collection, etc. under paragraph (3) shall be prescribed by the Ordinance of the Ministry of Employment and Labor. *<Amended by Act No. 11272, Feb. 1, 2012>*

<This Article Wholly Amended by Act No. 10337, May 31, 2010>

Article 57 (Cash Rewards for Reporting)

(1) The Minister of Employment and Labor may give cash rewards within the budgetary limits to a person who reports the misconduct of a person who conducts or is entrusted to conduct vocational skills development activities under this Act. *<Amended by Act No. 10339, Jun. 4, 2010>*

(2) Necessary matters concerning the report of misconducts and the payment of cash rewards under paragraph (1) shall be prescribed by the Ordinance of the Ministry of Employment and Labor. *<Amended by Act No. 10339, Jun. 4, 2010>*

<This Article Wholly Amended by Act No. 9316, Dec. 31, 2008>

CHAPTER VII

Supplementary Provisions and Penal Provisions

<Newly Inserted by Act No. 10337, May 31, 2010>

Article 58 (Guidance, Supervision, etc.)

(1) The Minister of Employment and Labor may order a person who falls under any of the following subparagraphs to make a necessary report or to submit materials, or have a relevant public official, etc. provide guidance and supervision by visiting the place where vocational skills development training, etc. is conducted, and investigating relevant documents or questioning related persons. *<Amended by Act No. 10337, May 31, 2010>*

1. A person who is entrusted by the Minister of Employment and Labor to conduct vocational skills development training pursuant to Article 16;
2. A person who obtains recognition pursuant to Article 19 or 24;
3. A person who receives support or loans pursuant to Articles 12, 17, 18, 20, 22 and 23;
4. A public organization which establishes and operates a public vocational training facility and a person who establishes and operates a designated vocational training facility;
5. A vocational skills development training corporation;
6. A person who operates a training facility or a training course to cultivate vocational skills development training instructors after obtaining approval pursuant to Article 36; and
7. A person who carries out work vicariously pursuant to Article 59.

(2) If the Minister of Employment and Labor conducts an investigation under paragraph (1), he/she shall inform the person to be investigated of necessary matters, such as the date and time, contents of the investigation, etc.: Provided that this shall not apply to urgent cases or cases where such prior notice is deemed to prevent the attainment of the objectives. *<Newly Inserted by Act No. 10337, May 31, 2010 and Amended by Act No. 11272, Feb. 1, 2012>*

(3) A public official who visits and provides guidance and supervision pursuant to paragraph (1) shall carry an identification indicating his/her authority and produce it to related persons. *<Amended by Act No. 10337, May 31, 2010>*

(4) The Minister of Employment and Labor shall inform the person investigated, in writing, of the results of the investigation under paragraph (1). *<Newly Inserted by Act No. 10337, May 31, 2010 and Amended by Act No. 11272, Feb. 1, 2012>*

(5) Necessary matters concerning the contents and methods of reports, the submission of materials, and guidance and supervision under paragraph (1) shall be prescribed by the Ordinance of the Ministry of Employment and Labor. *<Amended by Act No. 10337, May 31, 2010 and Act No. 10339, Jun. 4, 2010>*
<This Article Wholly Amended by Act No. 9316, Dec. 31, 2008>

Article 59 (Vicarious Execution of Duties)

(1) The Minister of Employment and Labor may have a person prescribed by the Presidential Decree vicariously execute some of the duties under Articles 6 through 8, 16 (limited to the duties of the Minister of Employment and Labor) 19, 20, 22, 23, 24, 28, 37, 38 and 53. *<Amended by Act No. 10337, May 31, 2010; Act No. 10339, Jun. 4, 2010; and Act No. 11272, Feb. 1, 2012>*

(2) Necessary matters concerning procedures for the vicarious execution of duties and support for expenses required for the vicarious execution of duties shall be prescribed by the Presidential Decree.

<This Article Wholly Amended by Act No. 9316, Dec. 31, 2008>

Article 60 (Delegation and Entrustment of Authority)

The Minister of Employment and Labor may delegate his/her authority under this Act to the heads of local employment and labor offices or the heads of local governments, or entrust it to any person prescribed by the Presidential Decree, such as the heads, etc., of public organizations, as prescribed by the Presidential Decree. *<Amended by Act No. 10339, Jun. 4, 2010>*

<This Article Wholly Amended by Act No. 9316, Dec. 31, 2008>

Article 61 (Legal Fiction of Public Official in Application of Penal Provisions)

Any person who engages in the duties entrusted by the Minister of Employment and Labor pursuant to Article 60 shall be deemed a public official in applying the provisions of Articles 129 through 132 of the Criminal Act. *<Amended by Act No. 10337, May 31, 2010 and Act No. 10339, Jun. 4, 2010>*

<This Article Wholly Amended by Act No. 9316, Dec. 31, 2008>

Article 62 (Hearing)

The Minister of Employment and Labor shall hold a hearing if he/she intends to take any of the following actions:
<Amended by Act No. 10337, May 31, 2010; Act No. 10339, Jun. 4, 2010; and Act No. 11272, Feb. 1, 2012>

1. Cancellation of recognition of a vocational skills development training course under Article 19 (2) or Article 24 (2);
2. Cancellation of approval of a public vocational skills development training facility under Article 27 (2);
3. Cancellation of designation of a designated vocational skills development training facility under Article 31 (1);
4. Cancellation of permission for establishment of a vocational skills development training corporation under Article 32 (2);
5. Cancellation of qualification of a vocational skills development training instructor under Article 35 (1);
6. Cancellation of approval of a training facility or training course under Article 36 (3); and
7. Cancellation of authorization for establishment of a degree-conferring advanced major course under Article 49-2 (1).

<This Article Wholly Amended by Act No. 9316, Dec. 31, 2008>

Article 63 (Fine for Negligence)

(1) A person who falls under any of the following subparagraphs shall be punished by a fine for negligence not exceeding three million won: <Amended by Act No. 10337, May 31, 2010>

1. A person who fails to pay accident consolation benefits in violation of Article 11;
2. A person who fails to preserve documents relevant to support or loans for expenses under Article 23-2;
3. A person who fails to make a report under Article 28 (3);
4. A person who fails to return training fees in violation of Article 30 (2);
- 4-2. A person who is not a polytechnic college but uses in its name, the term "polytechnic college" or any other similar term in violation of Article 51;
5. A person who fails to make a report under Article 58 or makes a false report;
6. A person who fails to comply with an order to submit materials under Article 58 or submits false materials; and
7. A person who gives a false answer to a question asked by a related public official pursuant to Article 58 or refuses, obstructs or evades guidance or supervision provided by a related public official.

(2) Fines for negligence under paragraph (1) shall be imposed and collected by the Minister of Employment and Labor under the conditions prescribed by the Presidential Decree. *<Amended by Act No. 10339, Jun. 4, 2010>*

<This Article Wholly Amended by Act No. 9316, Dec. 31, 2008>

Addenda *<Act No. 7298, Dec. 31, 2004>*

Article 1 (Enforcement Date)

This Act shall enter into force six months after its promulgation.

Article 2 (Transitional Measures concerning Recognition of Training Courses)

Training courses which, after being recognized or designated by the Minister of Labor pursuant to the previous provisions, provide vocational skills development training at the time this Act enters into force shall be deemed vocational skills development training courses recognized under the revised provision of Article 24 until the relevant training courses are completed.

Article 3 (Transitional Measures concerning Vocational Skills Development Training Facilities)

(1) Public vocational training facilities established after obtaining approval from the Minister of Labor at the time this Act enters into force shall be deemed to have obtained approval from the Minister of Employment and Labor pursuant to Article 27 of this Act.

(2) Vocational skills development training facilities established after being designated by the Minister of Labor at the time this Act enters into force shall be deemed to have been designated by the Minister of Employment and Labor pursuant to Article 28 for one year from the enforcement date of this Act.

Article 4 (Transitional Measures concerning Vocational Skills Development Training Corporation)

Vocational skills development training corporations permitted to be established pursuant to the previous provisions at the time this Act enters into force shall be deemed vocational skills development training corporations permitted to be established pursuant to Article 32.

Article 5 (Transitional Measures concerning Qualification of Vocational Skills Development Training Instructor)

A person who acquires qualifications as a vocational skills

development training instructor pursuant to the previous provisions at the time this Act enters into force shall be deemed a person who acquires qualifications as a vocational skills development instructor pursuant to Article 33.

Article 6 (Transitional Measures concerning Reasons for Disqualification of Vocational Skills Development Training Instructor)

Notwithstanding the provision of Article 34 (6), a person whose qualification as a vocational skills development training instructor is cancelled at the time this Act enters into force shall be subject to the previous provisions.

Article 7 (Transitional Measures concerning Punishment for Misconducts)

A person subjected to cancellation or suspension of qualifications, restrictions on entrustment, restrictions on recognition and designation, etc., by the Minister of Labor pursuant to the previous provisions of Articles 10, 17-2 and 28-2 at the time this Act enters into force shall be deemed a person subjected to cancellation or suspension of qualifications, restrictions on entrustment, restrictions on recognition and designation, etc., pursuant to Articles 35, 16 and 25, respectively.

Article 8 (Transitional Measures concerning Penal Provisions)

The application of penal provisions and fines for negligence to acts committed before the enforcement of this Act shall be subject to the previous provisions.

Article 9 (Revision of Other Acts)

(1) The Act on Special Measures for the Promotion of Businesses, etc. Specializing in Parts and Materials shall be revised as follows:

“If they are recognized as training courses under Article 28 (1) of the Vocational Training Promotion Act, according to the requirements prescribed in paragraph (3) of the same Act” in Article 12 (3) shall be changed to “if they are recognized as training courses provided in accordance with the training standards prescribed in Article 38 of the Employee Skills Development Act pursuant to Article 24 (1) or (2) of the same Act”.

(2) The Act on Employment Promotion and Vocational Rehabilitation for the Disabled shall be revised as follows:

“A facility as prescribed in the subparagraph 2 of Article 2 of the Vocational Training Promotion Act” in subparagraph 7 of Article 2 shall be changed to “a vocational skills development

training facility prescribed in subparagraph 3 of Article 2 of the Employee Skills Development Act”.

Article 8 (2) 5 shall be revised as follows:

5. Vocational skills development facilities under subparagraph 3 of Article 2 of the Employee skills Development Act

(3) The Act on the Human Resources Development Service of Korea shall be revised as follows:

Subparagraph 4 of Article 14 (1) shall be revised as follows:

4. Revenues from being entrusted with vocational skills development training by the State and a local government or revenues from being entrusted with vocational skills development training by employers, etc. under Article 16 of the Employee Skills Development Act;

(4) The Polytechnic College Act shall be revised as follows: “Subparagraph 1 of Article 2 of the Vocational Training Promotion Act” in subparagraphs 1 and 4 of Article 2 shall be changed to “subparagraph 1 of Article 2 of the Employee Skills Development Act”.

“The Vocational Training Promotion Act” in subparagraph 5 of Article 5-2 (2) shall be changed to “the Employee Skills Development Act”.

Subparagraph 3 of Article 6 (2) shall be revised as follows:

3. Basic plan on vocational competency development under Article 5 of the Employee Skills Development Act;

“The Vocational Training Promotion Act” in the former part of Article 8 (3) shall be changed to “the Employee Skills Development Act” and ‘Article 9 of the Vocational Training Promotion Act’ in the latter part of the same Act to “Article 33 of the Employee Skills Development Act”.

“Subparagraph 2 of Article 2 of the Vocational Training Promotion Act” in Article 21 (2) shall be changed to “subparagraph 3 of Article 2 of the Employee Skills Development Act” and “subparagraph 1 of Article 2 of the Vocational Training Promotion Act” to “subparagraph 1 of Article 2 of the Employee Skills Development Act”.

Article 10 (Relations with Other Acts and Subordinate Statutes)

In case the previous Vocational Training Promotion Act is cited or applied mutatis mutandis in other Acts and subordinate statutes at the time this Act enters into force, and there are corresponding provisions in this Act, it shall be considered that this Act and the corresponding provisions of this Act are cited or applied mutatis mutandis in place of the previous provisions.

Addenda <Act No. 8814, Dec. 27, 2007>

Article 1 (Enforcement Date)

This Act shall enter into force on the date of its promulgation.

Article 2 (Revision of Other Acts)

Parts of the Debtor Rehabilitation and Bankruptcy Act shall be revised as follows:

“A bankrupt in Subparagraph 2 of Article 34 shall be a person who is declared bankrupt” in Article 5 (18) of the Addenda of the Debtor Rehabilitation and Bankruptcy amended by Act no. 7428 shall be deleted.

Addenda <Act No. 8815, Dec. 27, 2007; Revision of the Act on the Promotion of Worker Participation and Cooperation>

Article 1 (Enforcement Date)

This Act shall enter into force on the date of its promulgation.

Article 2 (Revision of Other Acts)

Parts of the Employee Skills Development Act shall be revised as follows:

“The provisions in Article 20” in Article 20 (2) 3 shall be changed to “Article 21.”

Article 3 Omitted.

Addenda <Act No. 9792, Oct. 9, 2009; Revision of the Framework Act on Employment Policy>

Article 1 (Enforcement Date)

This Act shall enter into force on January 1, 2010.

Article 2 (Revision of Other Acts)

(1) through (4) Omitted.

(5) Part of the Workers’ Vocational Skills Development Act shall be revised as follows:

“Article 10 of Framework Act on Employment Policy” in Article 5 (2) 1 shall be changed to “Article 16 of Framework Act on Employment Policy”

(6) through (8) Omitted.

Article 3 Omitted.

Addenda *<Act No. 10337, May. 31, 2010>*

Article 1 (Enforcement Date)

This Act shall enter into force three months after its promulgation: Provided that the amended provision of Article 5 shall enter into force on January 1, 2012.

Article 2 (Repeal of Other Acts)

The Polytechnic College Act shall be repealed.

Article 3 (Transitional Measures concerning Recognition of Vocational Skills Development Training Courses)

Among vocational skills development training courses recognized under the previous provision of Article 24 at the time this Act enters into force, those for which a person who intends to conduct vocational skills development training for whose expenses workers are eligible to receive loans or support pursuant to the previous provision of Article 21 (1) 1 obtains recognition shall be deemed vocational skills development training courses recognized under the amended provision of Article 19.

Article 4 (Transitional Measures concerning Polytechnic Colleges)

A polytechnic college established under the previous Polytechnic College Act at the time this Act enters into force shall be deemed a polytechnic college established under the amended provision of Article 39.

Article 5 (General Transitional Measures concerning Actions, etc.)

Any action taken by or against an administrative agency under the previous Polytechnic College Act at the time this Act enters into force shall be deemed a corresponding action taken by or against an administrative agency under this Act.

Article 6 (Transitional Measures concerning Fine for Negligence)

The application of the provisions on fines for negligence to any person other than polytechnic colleges who uses in its name the term "polytechnic college" or any other similar term before this Act enters into force shall be governed by the previous Polytechnic College Act.

Article 7 (Revision of Other Acts)

(1) Parts of the Act on the Honorable Treatment of Persons of Distinguished Services to the May 18 Democratization Movement shall be revised as follows:

"Workers Vocational Skills Development Act and Polytechnic College Act" in the former part of Article 30 (2) shall be changed to "Workers Vocational Skills Development Act."

(2) Parts of the Employment Insurance Act shall be revised as follows:

"Article 16 (4) and (5) and Article 25 (3) and (4) of the Workers Vocational Skills Development Act" in Article 35 (3) shall be changed to "Article 55 (1) and (2) and Article 56 (1) through (3) of the Workers Vocational Skills Development Act".

(3) Parts of the Special Act on the Support of Science and Engineering Manpower for Strengthening National Science and Technology Competitiveness shall be revised as follows:

"Polytechnic colleges under subparagraph 1 of Article 2 of the Polytechnic College Act" in subparagraph 2 of Article 2 shall be changed to "polytechnic colleges under subparagraph 5 of Article 2 of the Workers Vocational Skills Development Act".

(4) Parts of the Act on the Honorable Treatment and Support of Persons, etc., of Distinguished Services to the State shall be revised as follows:

"Workers Vocational Skills Development Act and Polytechnic College Act" in the former part of Article 38 (2) shall be changed to "Workers Vocational Skills Development Act."

(5) Parts of the Professional Engineers Act shall be revised as follows:

"Subparagraph 1 of Article 2 of the Polytechnic College Act" in Article 5-4 (3) 5 shall be changed to "subparagraph 5 of Article 2 of the Workers Vocational Skills Development Act".

(6) Parts of the Corporate Tax Act shall be revised as follows:

"Polytechnic College Act" in Article 24 (2) 4 C shall be changed to "Workers Vocational Skills Development Act".

(7) Parts of the Act on Special Measures for the Promotion of Businesses, etc. Specializing in Parts and Materials shall be revised as follows:

"Article 24 (1) or (2) of the same Act" in Article 12 (3) shall be changed to "Article 19 (1) or Article 24 (1) of the same Act".

(8) Parts of the Income Tax Act shall be revised as follows:

"Polytechnic College Act" in Article 34 (2) 7 C shall be changed to "Workers Vocational Skills Development Act".

(9) Parts of the Special Act on the Establishment of Jeju Special Self-Governing Province and the Development of Free International City shall be revised as follows:

Article 147 (3) 3 shall be as follows:

3. Article 16 (1) through (3), Articles 17 through 20, Article 24, Article 28, Article 31, Article 33 (2), Article 35, Article 55, Article 56, Article 57, Article 58, subparagraphs 1, 3 and 5 of Article 62 and Article 63 of the Workers Vocational Skills Development Act.

(10) Parts of the Act on Support for Persons Engaged in Special Missions and the Establishment of Their Organizations shall be revised as follows:

"Workers Vocational Skills Development Act and Polytechnic College Act" in the former part of Article 29 (2) shall be changed to "Workers Vocational Skills Development Act."

(11) Parts on the Act on the Human Resources Development Service of Korea shall be revised as follows:

"Polytechnic College Act" in subparagraph 2 of Article 6, Article 14 (2), Article 15-2 and Article 26 (1) shall be changed to "Workers Vocational Skills Development Act".

(12) Parts of the Act on the Establishment, etc., of the Korea Scholarship Foundation shall be revised as follows:

"Subparagraph 1 of Article 2 of the Polytechnic College Act" in subparagraph 2 C of Article 2 shall be changed to "subparagraph 5 of Article 2 of the Workers Vocational Skills Development Act".

Article 8 (Relations with Other Acts and Subordinate Statutes)

References to the previous Workers Vocational Skills Development Act or its provisions and the previous Polytechnic College Act or its provisions in other Acts and subordinate statutes at the time this Act enters into force shall be deemed references to this Act or its corresponding provisions, if there are such corresponding provisions in this Act, in lieu of the previous Workers Vocational Skills Development Act or its provisions and the previous Polytechnic College Act or its provisions.

Addenda <Act No. 10338, May. 31, 2010>

Article 1 (Enforcement Date)

This Act shall enter into force on January 1, 2011.

Articles 2 through 4 Omitted.

Article 5 (Revision of Other Acts)

(1) and (2) Omitted.

(3) Part of the Workers Vocational Skills Development Act shall be revised as follows:

Article 41 (2) 1 through 3 shall be as follows:

1. A person selected as a master craftsman of Korea under Article 11 of the Act on Encouragement of Skilled Crafts;

2. A person selected as a skilled craft master under Article 13 of the Act on Encouragement of Skilled Crafts;

3. A person who has won a award in a domestic skills competition or a world skills competition under Article 20 or 21 of the Act on Encouragement of Skilled Crafts;

(4) and (5) Omitted.

Article 6 Omitted.

Addenda *<Act No. 10339, Jun. 4, 2010; Revision of the Government Organization Act>*

Article 1 (Enforcement Date)

This Act shall enter into force one month after its promulgation. <Proviso omitted>

Articles 2 and 3 Omitted.

Article 4 (Revision of Other Acts)

(1) through (28) Omitted.

(29) Part of the Workers Vocational Skills Development Act shall be revised as follows:

"Minister of Labor" in subparagraph 3 A and B of Article 2, Article 5 (1), Article 5 (2) 9, Article 5 (3), Article 6 (1), the former part of Article 6 (2), Article 7, Article 8 (1) and (2), Article 13 (1), Article 15 (1) 3, parts other than each subparagraph of Article 17, Article 19, parts other than each subparagraph of Article 20 (1) and (2), parts other than each subparagraph of Article 21 (1), Article 21 (1) 1, parts other than each subparagraph of Article 21 (2), Article 21-2 (1), parts other than each subparagraph of Article 22 (1) and (2), Article 23 (1), Article 24 (1), parts other than each subparagraph of Article 25

(1) and (3), Article 25 (4), parts other than each subparagraph of Article 25 (5), Article 26 (1), the former and latter parts of Article 26 (2), Article 26 (3), the former and latter parts of Article 27 (1), parts other than each subparagraph of Article 27 (2), parts other than each subparagraph of Article 28 (1), Article 28 (2) and (3), parts other than each subparagraph of Article 31 (1), parts other than each subparagraph of Article 32 (1), (2) and (3), Article 32-2 (1), (2), (5) and (6), Article 33 (2), parts other than each subparagraph of Article 35 (1), the former and latter parts of Article 36 (1), parts other than each subparagraph of Article 36 (3), Article 37 (1) and (2), Article 38 (1), parts other than each subparagraph of Article 39 (1), Article 39 (2), parts other than each subparagraph of Article 40 (1), Article 40 (1) 1, Article 42 (1), Article 44 (1), Article 45, Article 46, parts other than each subparagraph of Article 47 and Article 48 (2) shall be changed to "Minister of Employment and Labor".

"Ordinance of the Ministry of Labor" in parts other than each subparagraph of Article 16 (6), the main sentence and proviso of Article 23-2, parts other than each subparagraph of Article 25 (5), Article 25 (6), Article 26 (3), Article 27 (3), Article 31 (2), Article 32-2 (8), Article 35 (2), Article 36 (4), Article 39 (1) 6, Article 40 (3), Article 42 (2) and Article 43 shall be changed to "Ordinance of the Ministry of Employment and Labor".

"Local labor offices" in Article 45 shall be changed to "local employment and labor offices".

(30) through (82) Omitted.

Article 5 Omitted.

Addenda <Act No. 10866, Jul. 21, 2011; Revision of the Higher Education Act>

Article 1 (Enforcement Date)

This Act shall enter into force on the date of its promulgation: Provided that ...<omitted>... Article 3 of the Addenda shall enter into force one year after its promulgation.

Article 2 Omitted.

Article 3 (Revision of Other Acts)

(1) through (7) Omitted.

(8) Part of the Workers Vocational Skills Development Act shall be revised as follows:

"Professors, associate professors, assistant professors and full-time instructors" in Article 43 (2) shall be changed to "professors, associate professors and assistant professors".
(9) through (27) Omitted.

Article 4 Omitted.

Addenda *<Act No. 11042, Sept. 15, 2011; Revision of the Act on Support for Persons Entitled to Veterans Benefits>*

Article 1 (Enforcement Date)

This Act shall enter into force on July 1, 2012.

Article 2 (Revision of Other Acts)

(1) through (7) Omitted.

(8) Part of the Workers Vocational Skills Development Act shall be revised as follows:

Article 3 (4) 3 shall be revised as follows:

3. Persons who gave distinguished services to the State, and their bereaved families and dependents under the Act on the Honorable Treatment and Support for Persons, etc. of Distinguished Services to the State and persons entitled to veterans benefits and their bereaved families and dependents under the Act on Support for Persons Entitled to Veterans Benefits

(9) through (27) Omitted.

Addenda *<Act No. 11272, Feb. 1, 2012>*

Article 1 (Enforcement Date)

This Act shall enter into force five months after its promulgation.

Article 2 (Transitional Measures concerning Cancellation, etc., of Designation)

Designated vocational training facilities for which a cause for cancellation, etc., of designation arises before this Act enters into force shall be governed by the previous provisions notwithstanding the amended provisions of Article 31 (1).

Addenda *<Act No. 11461, Jun. 1, 2012; Revision of the Framework Act on Electronic Documents and Electronic Commerce>*

Article 1 (Enforcement Date)

This Act shall enter into force three months after its promulgation.

Articles 2 and 9 Omitted.

Article 10 (Revision of Other Acts)

(1) through (4) Omitted.

(5) Part of the Workers Vocational Skills Development Act shall be revised as follows:

"The Framework Act on Electronic Commerce" in Article 23-2 (2) shall be changed to "the Framework Act on Electronic Documents and Electronic Commerce".

(6) through (25) Omitted.

Addenda *<Act No. 11690, Mar. 23, 2013; Revision of the Government Organization Act>*

Article 1 (Enforcement Date)

(1) This Act shall enter into force on the date of its promulgation.

(2) Omitted.

Articles 2 and 5 Omitted.

Article 6 (Revision of Other Acts)

(1) through (523) Omitted.

(524) Part of the Workers Vocational Skills Development Act shall be revised as follows:

"The Minister of Education, Science and Technology" in Article 39 (2), (3) and (5), Article 40-2 (2), Article 42 (2), parts other than each subparagraph of Article 49 (1), Article 49 (2) and (3), Article 49-2 (2), parts other than each subparagraph of Article 50 (1) and Article 50 (2) shall be changed to "the Minister of Education".

(525) through (710) Omitted.

Article 7 Omitted.